

Board of Zoning Appeals July 31st 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=r1fJ8NmbQbc
Publication Date	2025-08-01T10:42:13Z
Target Category	delaware_county

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Delaware Municipal Metropolitan Board of Zoning Appeals Meeting Summary

Meeting Date: July 25 (Regular Monthly Meeting)

Board Name: Delaware Municipal Metropolitan Board of Zoning Appeals

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The presiding officer called the regular monthly meeting of the Delaware Municipal Metropolitan Board of Zoning Appeals to order [00:00:34](#).
- **Attendance:**
 - **Members Present:** Mr. Billington, Miss Fritch, Miss Knap, and Miss Matthew (Four members present, establishing a quorum. The presiding officer noted that because only four members were present, official action required a unanimous four-vote agreement).
 - **Members Absent:** Miss Brandon, Mr. Clark, and Miss Kaiser.
 - **Presiding Officer:** Noted as the chair/chairperson leading the proceedings.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The board stood for the Pledge of Allegiance [00:00:49](#).
- **Approval of Minutes:**

- **Item:** Consideration of regular monthly meeting minutes for May and June 00:01:56.
- **Action & Vote Disposition:** A motion was made and seconded to approve the May and June minutes as stated 00:02:18. Approved by roll call vote (4 yeses: Fritch, Knap, Billington, Matthew) 00:02:37.

3. Substantive Business & Board Action

- 00:03:10 **BZA Case 29-25: Automatic Continuance**
 - **Sponsor / Presenter:** Board staff.
 - **Deliberation Summary:** Staff announced that BZA Case 29-25 was automatically continued until the September meeting at the request of the applicant, submitted with sufficient notice for surrounding property owner notifications.
 - **Action & Vote Disposition:** No board vote was required; the case was automatically continued to the September 25 meeting at 6:00 PM 00:03:30.
- 00:03:54 **BZA Case 30-25: Variance Application (Richard L. and Linda M. Vore)**
 - **Item Identifier & Title:** BZA 30-25 <U+2014> Public hearing on an application filed by Richard L. and Linda M. Vore (4190 East Gregory Road, Eaton, IN) requesting a variance from the Delaware County Comprehensive Zoning Ordinance.
 - **Sponsor / Presenter:** Richard L. Vore and Linda M. Vore.
 - **Deliberation Summary:** The applicants originally requested a zero-foot side setback (a 25-foot variance from the required 25-foot setback) for a new barn on a property located on East Gregory Road, Union Township. The applicants explained that the adjacent land is in an irrevocable trust and classified forest/floodplain area via a DNR program, restricting utility. They noted that due to age and difficulty walking down a hill from their house, the proposed barn location next to their existing driveway and garage is necessary for accessibility. Board members discussed whether a small setback could be achieved to avoid a zero-foot property line placement. After discussion, the applicants formally agreed to amend their request to a 5-foot side setback (a 20-foot variance).
 - **Item-Specific Public Input:** None recorded.
 - **Action & Vote Disposition:** Approved with the amended request for a 5-foot side setback (a 20-foot variance) by roll call vote (4 yeses: Knap, Fritch, Matthew, Billington) 00:18:06.
- 00:20:06 **BZA Case 31-25: Use Variance Application (Teresa K. Johnson)**
 - **Item Identifier & Title:** BZA 31-25 <U+2014> Public hearing on an application filed by Teresa K. Johnson (1201 North County Road 600 East, Selma, IN) requesting a variance of use from the Delaware County Comprehensive Zoning Ordinance.
 - **Sponsor / Presenter:** Teresa K. Johnson.
 - **Deliberation Summary:** The applicant requested a use variance to operate a two-chair beauty salon inside an accessory building within a residential zone at 1201

North County Road 600 East, Liberty Township. The applicant explained she is moving her business of 38 years from downtown Selma to her home to care for her mother, who has dementia. She operates three days a week (Tuesday through Thursday, roughly 8-hour days) by herself, installs no exterior signage, and aims to limit outside traffic.

- **Item-Specific Public Input:**

- **00:24:16 TJ M** (resident from Selma, IN) spoke in favor of the application, stating the applicant is a great neighbor who has significantly improved the property.

- **Action & Vote Disposition:** Approved with the condition that the variance is strictly personal to the applicant and will not transfer or continue once she moves from the property or passes away. Approved by roll call vote (4 yeases: Billington, Fritch, Knap) **00:26:06**.

4. Open Public Comment / Citizen Forum

No general open public comment period or citizen forum was conducted outside of the specific public hearings detailed in Section 3.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- **Director's Report:** Staff presented year-to-date figures, reporting 468 total permits issued and \$14,059 in fees collected. Staff provided updates on transportation planning (awaiting state/federal approval of the 4-year transportation plan by August 15), the public transit human services transportation coordination plan steering committee, land use case statistics (63 total cases year-to-date), a special Plan Commission meeting for the proposed solar ordinance scheduled for August 12 at 6:00 PM at the Justice Center, a developing county pond ordinance, the ADA Delaware County transition plan update, and an introductory review of proposed updates to the BZA Rules of Procedure drafted by Mr. Murphy.

- **Adjournment:** The meeting was adjourned by voice vote following a motion and a second **00:36:27**.